

Petitioner to submit a conforming order for the court's review and signature.

All future compliance hearings are vacated.

LINE

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IN RE THE ESTATE OF CHARLES L. CARRILLO, DECEASED
PR25-00133

First and Final Report of Administrator on Waiver of Account and Petition for Final Distribution, for Allowance of Statutory Attorney's Fees

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed, except that release of liability and discharge shall be ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.

Petitioner to submit a conforming order for the court's review and signature.

All future compliance hearings are vacated.

LINE

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IN RE THE ESTATE OF DANIEL L. POWELL, DECEASED
PR25-00359

Petition to Intervene; Petition to Contest Authenticity of Quit Claim Deed; Petition for Notice, Accounting, Injunctive Relief, and Related Relief

PREGRANT ORDER

This matter was continued from April 22, 2026 to allow the moving party to resolve issues with the petition. The court notes that a Creditor Claim was filed April 29, 2026 which was rejected by the administrator on May 5, 2026. Nothing else has been filed by the moving party to address the issues.

The court on its own motion continues this hearing to August 12, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. The proof of service on file does not indicate that a copy of the petition was served. Additionally, the proof of service does not show that copies of the documents were served on all persons who have an interest in the estate.
2. The challenged deed was executed in November 2003 and recorded in January 2004. The statute of limitations on fraud is three years. The petitioner shall

explain why he did not challenge the deed during his father's lifetime.

3. The petitioner claims that he had a beneficial interest in the house and did not consent to the deed. The petitioner shall explain whether he was a titled co-owner or, if not, the legal basis for his claim of beneficial interest.
4. The petitioner shall explain when Horden Powell died and whether his estate was probated. If Horden Powell's estate was probated, the petitioner shall provide copies of the court documents and any orders.
5. The petitioner states that he grew up in the house, but he does not state when he moved back into the house. He also does not state whether he signed a lease agreement with the decedent.
6. There is a civil matter (CL26-00664) (unlawful detainer) regarding this property and the petitioner's tenancy which was tried on April 15, 2026. In that matter, the court awarded restitution of the premises to the administrator of the estate. It does not appear that the petitioner raised the issue of his alleged beneficial ownership interest in the house in that matter. The petitioner shall explain.

LINE

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**IN RE THE ESTATE OF FRANCIS MARLENE PHILLIPS, DECEASED
PR25-00359**

Petition for Letters of Administration and for Authorization to Administer Under the
Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from December 10, 2025 and February 4, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing to August 12, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. Petition, item 3.e: The decedent was survived by a spouse who died sixteen years after the decedent and would be an heir of the estate. While the petitioner seeks to waive bond, there is no bond waiver on behalf of the personal representative of the estate of Calvin M. Phillips. There is also no bond waiver from the personal representative of the estate of Richard Wayne Cruz who is also an heir of the estate.
 2. The proof of service does not show that notice was given to the personal administrator of the estate of Calvin M. Phillips.
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